

26LBCV00304 26LBCV00304

County: los-angeles

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Case Number: 26LBCV00304 Hearing Date: June 25, 2026 Dept: S28

TENTATIVE RULING

JUDGE SABINA A. HELTON

DEPARTMENT S28

Hearing Date: Thursday, June 25, 2026

Case Name: Pamela Pieroni, by and through her successor-in-interest, Dawn Genis v. Global Regency Senior Care Services, LLC, et al.

Case No.: 26LBCV00304

Motion: 1. Motion to Compel Arbitration;

2. Motion to Compel Production.

Moving Party: 1. Defendants Global Regency Senior Care Services, LLC and Global Premier Regency Palms, LP;

2. Plaintiff Pamela Pieroni, by and through her successor-in-interest, Dawn Genis.

Responding Party: 1. Plaintiff Pamela Pieroni, by and through her successor-in-interest, Dawn Genis;

2. Defendants Global Regency Senior Care Services, LLC and Global Premier Regency Palms, LP.

Notice: OK

Trial: Not Set

Ruling: 1. Defendants' Motion to Compel Arbitration is CONTINUED to August 4, 2026;

2. Plaintiff's Motion to Compel Defendant's Production of Plaintiff's Records is CONTINUED to August 4, 2026.

The parties are ordered to file supplemental briefing on the issue of whether Plaintiff Pamela Pieroni was deemed "incapacitated" for the purposes of her Power of Attorney being in effect, at the time of April Pieroni signing the Arbitration Agreement on Plaintiff's behalf.

Defendants are to submit a brief on the issue, no more than 8 pages in length, by July 20, 2026. Plaintiff is to file any responsive brief, no more than 8 pages in length, no later than July 28, 2026.

BACKGROUND

On February 5, 2026, Plaintiff Pamela Pieroni, by and through her successor-in-interest, Dawn Genis ("Plaintiff") commenced this action against Defendants Global Regency Senior Care Services, LLC and Global Premier Regency Palms, LP ("Defendants") alleging elder abuse and negligence.

On March 12, 2026, Defendants filed the instant Motion to Compel Arbitration.

On March 24 2026, Plaintiff filed opposition to the Motion to Compel Arbitration.

On April 7, 2026, Plaintiff filed ex parte to compel the production of Plaintiff's complete record from Defendants. The Court denied this application and set a noticed motion hearing.

On May 6, 2026, Defendant filed opposition to Plaintiff's Motion to Compel Production.

On May 12, 2026, Plaintiff filed a reply in support of the Motion to Compel Production.

On June 17, 2026, Defendants filed a reply in support of the Motion to Compel Arbitration.

DISCUSSION

Applicable Law

Under both the Federal Arbitration Act and California law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (Winter v. Window Fashions Professions, Inc. (2008) 166 Cal.App.4th 943, 947.) In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law help guide the court in making this determination. (Mendez v. Mid-Wilshire Health Care Center (2013) 220 Cal.App.4th 534, 541.) "With respect to the moving party's burden to provide

evidence of the existence of an agreement to arbitrate, it is generally sufficient for that party to present a copy of the contract to the court." (Baker v. Italian Maple Holdings, LLC (2017) 13 Cal.App.5th 1152, 1160.)

The right to compel arbitration exists unless the court finds that the right has been waived by a party's conduct, other grounds exist for revocation of the agreement, or where a pending court action arising out of the same transaction creates the possibility of conflicting rulings on a common issue of law or fact. (Code Civ. Proc., § 1281.2(a)-(c).)

Analysis

A. Whether April Pieroni Had Authority to Bind Pamela Pieroni to the Agreement

Plaintiff Pamela Pieroni, by and through her successor-in-interest, Dawn Genis, commenced this action against Defendants Global Regency Senior Care Services, LLC and Global Premier Regency Palms, LP alleging elder abuse and negligence. At issue is the enforceability of an arbitration agreement contained in a residential agreement that Pamela's daughter April Pieroni signed when Plaintiff Pamela entered into Defendants' facility. Neither party disputes that the arbitration agreement which Defendants seek to enforce was not signed by Plaintiff Pamela, but rather one of her daughters, April Pieroni. Plaintiff argues that as of April 27, 2019 and/or April 30, 2019, when the Agreement was signed, Pamela had not granted her daughter April a Power of Attorney ("POA") to act on her behalf and bind her to the Agreement, because Pamela had not yet been deemed "incapacitated."

The POA states as follows:

This Power shall become effective upon my incapacity as determined in accordance with Paragraph 2.1 of this Power.

...

2.1. Determination of Incapacity. For all purposes under this Power, I shall be deemed "incapacitated" if and so long as a court of competent jurisdiction has made a finding to that effect or a guardian or conservator of my person or estate duly appointed by a court of competent jurisdiction is serving, or upon certification by two physicians (licensed to practice under the laws of the state where I am domiciled at the time of the certification) that I am unable properly to care for myself or for my person or property, which certification shall be made by each physician in a written declaration under penalty of perjury. A certified copy of the decree declaring incapacity or appointing a guardian or conservator, or the physicians' certificate shall be attached to the original of this document and recorded in the same county or counties as the original if the original is recorded.

(Garcia Decl., Ex. 1.)

Plaintiff has another daughter, Dawn Genis, who brings this action as successor-in-interest to Pamela. Ms. Genis declares that "to my knowledge, my mother's Durable Power of Attorney for Management of Property and Personal Affairs executed on March 1, 1993 was not in effect as of April 27, 2019 or April 30, 2019 as my mother had not been deemed incapacitated as defined in paragraph 2.1 of the durable power of attorney. As of April 27, 2019 and April 30, 2019, my mother was not deemed incapacitated by a court, my mother did not have an appointed guardian or conservator for her person or estate duly appointed by a court, and my mother was not certified by two physicians in written declarations under penalty of perjury that she was unable to properly care for herself or her person or property."

Defendant argues that the basis of Ms. Genis's knowledge on the issue is specious in that she was not the primary agent, April, and is involved in litigation with the primary agent concerning the decedent's estate.

Here, the Court finds Ms. Genis's declaration regarding her mother's capacity as of April 27, 2019 or April 30, 2019 to be self-serving and lacking the necessary foundation to be determinative on this key issue. Ms. Genis does not describe how

she is aware of her mother Pamela's capacity at that time, nor does she provide any medical records or declarations of Pamela's physicians which could support the conclusion that Pamela had not been deemed incapacitated at that time. There is also no declaration from April, the signatory. Defendants similarly do not offer any proof of Pamela's incapacity.

Thus, supplemental briefing is necessary on the issue of whether Plaintiff Pamela Pieroni was deemed "incapacitated" for the purposes of her Power of Attorney being in effect, at the time of April Pieroni signing the Arbitration Agreement on Plaintiff's behalf.

The Motion to Compel Arbitration and Motion to Compel Production are CONTINUED to August 4, 2026.

Defendants are to submit a brief on the issue, no more than 8 pages in length, by July 20, 2026. Plaintiff is to file any responsive brief, no more than 8 pages in length, no later than July 28, 2026.

CONCLUSION

Defendants' Motion to Compel Arbitration is CONTINUED to August 4, 2026. Plaintiff's Motion to Compel Defendant's Production of Plaintiff's Records is CONTINUED to Aug 4, 2026.

The parties are ordered to file supplemental briefing on the issue of whether Plaintiff Pamela Pieroni was deemed "incapacitated" for the purposes of her Power of Attorney being in effect, at the time of April Pieroni signing the Arbitration Agreement on Plaintiff's behalf.

Defendants are to submit a brief on the issue, no more than 8 pages in length, by July 20, 2026. Plaintiff is to file any responsive brief, no more than 8 pages in length, no later than July 28, 2026.